

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 770

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO MOTOR VEHICLE FINANCIAL RESPONSIBILITY; AMENDING SECTION 49-117, IDAHO CODE, TO REVISE THE AMOUNT OF REQUIRED MOTOR VEHICLE INSURANCE RELATING TO PROPERTY DAMAGE; AMENDING SECTION 49-1229, IDAHO CODE, TO REVISE THE AMOUNT OF REQUIRED MOTOR VEHICLE INSURANCE RELATING TO PROPERTY DAMAGE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-117, Idaho Code, be, and the same is hereby amended to read as follows:

49-117. DEFINITIONS -- P. (1) "Park" or "parking" means the standing of a vehicle, whether occupied or not, other than temporarily for the purpose of and while actually engaged in loading or unloading property or passengers.

(2) "Park model recreational vehicle" means a recreational vehicle that is designed to provide temporary accommodations for recreational, camping or seasonal use, is built on a single chassis, was originally mounted on wheels, has a gross trailer area not exceeding four hundred (400) square feet in the set-up mode and is certified by its manufacturer as complying with the American National Standards Institute (ANSI) A119.5 Standard for Recreational Park Trailers, and includes park models, park trailers and recreational park trailers.

(3) "Part-time salesman" means any person employed as a vehicle salesman on behalf of a dealer fewer than thirty (30) hours per week.

(4) "Peace officer." (See section 19-5101(d), Idaho Code)

(5) "Pedestrian" means any person afoot and any person operating a wheelchair or a motorized wheelchair or an electric personal assistive mobility device.

(6) "Pedestrian path" means any path, sidewalk or way set aside and used exclusively by pedestrians.

(7) (a) "Person" means every natural person, firm, fiduciary, copartnership, association, corporation, trustee, receiver or assignee for the benefit of creditors, political subdivision, state or federal governmental department, agency, or instrumentality and, for the purposes of chapter 22, title 49, Idaho Code, shall include a private, common or contract carrier operating a vehicle on any highway of this state.

(b) "Person with a disability" means:

(i) A person who is unable to walk two hundred (200) feet or more unassisted by another person;

(ii) A person who is unable to walk two hundred (200) feet or more without the aid of a walker, cane, crutches, braces, prosthetic device or a wheelchair; or

(iii) A person who is unable to walk two hundred (200) feet or more without great difficulty or discomfort due to the following impairments: neurological, orthopedic, respiratory, cardiac, arthritic disorder, blindness, or the loss of function or absence of a limb.

(iv) For the purposes of chapters 3 and 4, title 49, Idaho Code, a person with a permanent disability is one whose physician certifies that the person qualifies as a person with a disability pursuant to this paragraph and further certifies that there is no expectation for a fundamental or marked change in the person's condition at any time in the future.

(8) "Personal delivery device" means an electrically powered device that is operated on sidewalks, crosswalks, and the sides or berms of highways and is intended primarily to transport property; weighs less than five hundred fifty (550) pounds, excluding cargo; operates at a maximum speed of ten (10) miles per hour when on sidewalks; and is equipped with technology to allow for operation of the device with or without the active control or monitoring of a natural person. A personal delivery device shall not be defined as a vehicle or motor vehicle in any section of the law, unless expressly so stated.

(9) "Personal delivery device operator" means an entity or its agent that exercises direct physical control or monitoring over the navigation system and operation of a personal delivery device. For the purposes of this subsection, the term "agent" means a person charged by the entity with the responsibility of navigating, monitoring, or operating the personal delivery device. The term "personal delivery device operator" does not include an entity or person who requests the services of a personal delivery device for the purpose of transporting property or an entity, nor does it include a person who merely arranges for and dispatches the requested services of a personal delivery device.

(10) "Personal information" means information that identifies an individual, including an individual's photograph or computerized image, social security number, driver identification number, name, address, telephone number, and medical or disability information, but does not include information on vehicular accidents, driving or equipment-related violations, the five-digit zip code of the person's address, or status of the driver's license or motor vehicle registration.

(11) "Pneumatic tire." (See "tires," section 49-121, Idaho Code)

(12) "Pole trailer." (See "trailer," section 49-121, Idaho Code)

(13) "Possessory lien" means a lien dependent upon possession for compensation to which a person is legally entitled for making repairs or performing labor upon, and furnishing supplies or materials for, and for the towing, storage, repair, or safekeeping of any vehicle of a type subject to registration.

(14) "Possessory lienholder" means any person claiming a lien, which lien claimed to have accrued on a basis of services rendered to the vehicle that is the subject of the lien.

(15) "Preceding year" means, for the purposes of section 49-434, Idaho Code, a period of twelve (12) consecutive months fixed by the department, prior to July 1 of the year immediately preceding the commencement of the

1 registration or license year for which proportional registration is sought.
2 The department in fixing the period shall make it conform to the terms, con-
3 ditions and requirements of any applicable agreement or arrangement for the
4 proportional registration of vehicles.

5 (16) "Pressure regulator valve" means a device or system that governs
6 the load distribution and controls the weight borne by a variable load sus-
7 pension axle in accordance with a predetermined valve setting.

8 (17) "Principal place of business" means an enclosed commercial struc-
9 ture located within the state, easily accessible and open to the public at
10 all reasonable times, with an improved display area large enough to display
11 five (5) or more vehicles of the type the dealer is licensed to sell, imme-
12 diately adjoining the building, and at which the business of a dealership,
13 including the display and repair of vehicles, may be lawfully carried on
14 in accordance with the terms of all applicable building codes, zoning and
15 other land-use regulatory ordinances, and in which building the public shall
16 be able to contact the dealer or his salesmen in person or by telephone at
17 all reasonable times. The books, records and files necessary to conduct
18 the business of the dealership must be kept or reproduced electronically at
19 the dealership's licensed location(s). A dealership keeping its physical
20 books, records and files at an off-site location must notify the department
21 in writing of such location at least thirty (30) days in advance of moving
22 such books, records and files off-site. Physical books, records and files
23 must be made available to the department upon request within three (3) busi-
24 ness days of such request. The principal place of business shall display
25 an exterior sign permanently affixed to the land or building, with letters
26 clearly visible to the major avenue of traffic. In no event shall a room or
27 rooms in a hotel, rooming house, or apartment house building or a part of any
28 single or multiple unit dwelling house be considered a "principal place of
29 business" within the terms and provisions of this title unless the entire
30 ground floor of that hotel, apartment house, or rooming house building or
31 dwelling house be devoted principally to and occupied for commercial pur-
32 poses, and the office or offices of the dealer be located on the ground floor.

33 (18) "Private property open to the public" means real property not owned
34 by the federal government or the state of Idaho or any of its political sub-
35 divisions, but is available for vehicular traffic or parking by the general
36 public with the permission of the owner or agent of the real property.

37 (19) "Private road" means every way or place in private ownership and
38 used for vehicular travel by the owner and those having express or implied
39 permission from the owner, but not by other persons.

40 (20) "Proof of financial responsibility" means proof of ability to re-
41 spond in damages for liability, on account of accidents occurring subsequent
42 to the effective date of the proof, arising out of the ownership, mainte-
43 nance or use of a motor vehicle, in the amount of twenty-five thousand dol-
44 lars (\$25,000) because of bodily injury to or death of one (1) person in any
45 one (1) accident and, subject to the limit for one (1) person, in the amount
46 of fifty thousand dollars (\$50,000) because of bodily injury to or death of
47 two (2) or more persons in any one (1) accident, and in the amount of ~~fifteen~~
48 ~~thousand dollars (\$15,000)~~ twenty-five thousand dollars (\$25,000) because
49 of injury to or destruction of property of others in any one (1) accident.

50 (21) "Proper authority" means a public highway agency.

(22) "Public highway agency" means the state transportation department, any city, county, highway district or any other state agency that has jurisdiction over public highway systems and public rights-of-way.

(23) "Public right-of-way" means a right-of-way open to the public and under the jurisdiction of a public highway agency, where the public highway agency has no obligation to construct or maintain said right-of-way for vehicular traffic.

(24) "Public road jurisdiction" means a public highway agency.

(25) "Purchase." (See "sell," "sold," and "buy," section 49-120, Idaho Code)

SECTION 2. That Section 49-1229, Idaho Code, be, and the same is hereby amended to read as follows:

49-1229. REQUIRED MOTOR VEHICLE INSURANCE. (1) Every owner of a motor vehicle which is registered and operated in Idaho by the owner or with his permission shall continuously, except as provided in section 41-2516, Idaho Code, provide insurance against loss resulting from liability imposed by law for bodily injury or death or damage to property suffered by any person caused by maintenance or use of motor vehicles described therein in an amount not less than that required by section 49-117, Idaho Code, and shall demonstrate the existence of any other coverage required by this title or a certificate of self-insurance issued by the department pursuant to section 49-1224, Idaho Code, for each motor vehicle to be registered.

(2) A motor vehicle owner who prefers to post an indemnity bond with the director of the department of insurance in lieu of obtaining a policy of liability insurance may do so. Such bond shall guarantee that any loss resulting from liability imposed by law for bodily injury, death or damage to property suffered by any person caused by accident and arising out of the operation, maintenance and use of the motor vehicle sought to be registered shall be paid within thirty (30) days. The indemnity bonds shall guarantee payment in an amount no less than fifty thousand dollars (\$50,000) for any one (1) accident of which ~~fifteen thousand dollars (\$15,000)~~ twenty-five thousand dollars (\$25,000) is for property damage, for each vehicle registered up to a maximum of one hundred twenty thousand dollars (\$120,000) for five (5) or more vehicles.

(3) Any bond given in connection with this chapter shall be, and shall be construed to be, a continuing instrument and shall cover the period for which the motor vehicle is to be registered and operated. Such bond shall be on a form approved by the director of insurance with a surety company authorized to do business in the state.

(4) A motor carrier shall continuously provide insurance against loss resulting from liability imposed by law or by rule of the department and shall comply with the insurance requirements of section 49-1233, Idaho Code.

(5) It is an infraction punishable by a fine of seventy-five dollars (\$75.00) for any person to violate the provisions of this section for the first time. A second and any subsequent conviction for a violation of the provisions of this section or the provisions of section 49-1232 or 49-1428, Idaho Code, within a period of five (5) years shall be a misdemeanor, punishable by a fine not exceeding one thousand dollars (\$1,000), or by imprisonment in the county jail not exceeding six (6) months, or both. The depart-

1 ment shall notify any person convicted of a violation of this section of the
2 penalties which may be imposed for a second and any subsequent conviction.

3 SECTION 3. An emergency existing therefor, which emergency is hereby
4 declared to exist, this act shall be in full force and effect on and after
5 July 1, 2026.